

Court No. - 46

Case :- WRIT - C No. - 15808 of 2020

Petitioner :- M/S Janta Oil Udyog

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Siya Ram Verma, Akansha Verma, Deepak Kumar Verma

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

The present writ petition has been filed seeking following reliefs:

"A. Issue a writ, order or direction in the nature of certiorari quashing of the impugned Notice dated 18.07.2020 (letter no. 471807200106) issued by respondent no. 5, Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited (EDD Khaga) Fatehpur to recover the amount of Rs.5,38,028.00 as land revenue from the petitioner (annexure no. 1 to this writ petition).

B. Issue a writ, order or direction in the nature of mandamus directing the concern respondent-authorities preferably respondent nos. 4 & 5 to provide correct electricity bill for disputed period on the basis of disconnection of electricity on dated 18.03.2019 and to accept the actual dues amount against the petitioner of electricity charges by adjusting previous deposit/installment made by petitioner, in respect of electricity connection No. KG05060006438 (Account No. 751724257225) in the name of M/S Janta Oil Udyog.

C. Issue a writ, order or direction in the nature of mandamus directing the concern respondent-authorities preferably respondent nos. 4 & 5 to provide some time and easy installments with simple interest to petitioner to deposit his electricity dues."

When the Court was not inclined to grant the relief (A), learned counsel for the petitioner submitted that he is not pressing the first relief and the petitioner intends to deposit Rs.1,00,000/- within a period of three weeks from today and he may be granted liberty to approach the Executive Engineer concerned under Clause 6.5 of the Electricity Supply Code, 2005 for

redressal of its grievance.

Sri Mahboob Ahmad, learned counsel appearing on behalf of respondent nos. 3 to 5, has no objection to such prayer.

Considering the facts and circumstances of the case, without expressing any opinion on the merits, the writ petition is disposed of with a direction to the petitioner to approach the respondent no. 5 within a period of three weeks from today along with a representation and a bank draft of Rs. 1,00,000/- against the impugned demand, to establish its bonafide. In case the petitioner approaches the respondent no. 5 along with the bank draft of Rs.1,00,000/-, the said respondent shall consider the grievance of the petitioner and pass the appropriate order in accordance with law expeditiously, preferably within a period of four weeks thereafter, after giving opportunity of hearing to the petitioner. The decision taken by the respondent no. 5 shall be communicated to the petitioner by registered post/ special messenger.

However, if the petitioner fails to furnish the bank draft within the stipulated period, he will not avail the benefit of this order.

Order Date :- 8.10.2020

SKT/-